



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

JUN 21 1996

400 Seventh Street S.W.  
Washington D.C. 20590

DOT-E 11713

EXPIRATION DATE: July 20, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: CSX Transportation, Incorporated  
Jacksonville, Florida
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the shipment, in commerce, of a DOT Specification 111A100W5 tank car, containing a class 8 material, meeting all DOT requirements except that the tank car has a defective sump weld seam. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a); 173.29(a); 174.3; 174.50(a).
5. BASIS: This emergency exemption is based on CSX Transportation Incorporated's application of June 13, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description/proper shipping name | Hazard Class/ Division | Identification number | Packing Group |
|------------------------------------------------------|------------------------|-----------------------|---------------|
| Hydrochloric acid                                    | 8                      | UN 1830               | II            |

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
  - a. PACKAGING - Packaging prescribed is a DOT specification 111A100W5 tank car, UTLX 11086, meeting all DOT specification requirements except that the tank car has a defective sump weld seam which is unrepairable in the present location.

JUN 21 1996

Continuation of DOT-E 11713

Page 2

b. MARKING - Tank car UTLX 11086 shall be marked "DOT-E 11713" in letters and numerals at least four inches high above the DOT specification markings on a contrasting background.

c. TESTING - The bottom outlet valve for tank car GATX 40243 shall be retested after repair and prior to reloading with hazardous materials.

8. SPECIAL PROVISIONS.

a. Shipment of tank car UTLX 11086 is authorized from CSX Transportation Incorporated's rail yard, Mason City, West Virginia, to Bayer Corporation, Natrium, West Virginia, a distance of approximately 115 miles utilizing the most direct route available via CSX Transportation.

b. Tank car UTLX 11086 shall be transported as the last car in the train.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration  
Office of Safety Enforcement, RRS-12  
Hazardous Materials Division  
400 Seventh Street, S.W.  
Washington, D.C. 20590  
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

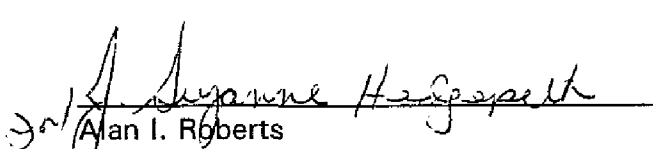
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

JUN 21 1996

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,  
Research and Special Programs Administration, Department of Transportation,  
Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA